

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 631

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO IDAHO AGRICULTURAL PRODUCTS; AMENDING SECTION 22-112, IDAHO CODE, TO PROVIDE FOR CERTIFICATES OF FREE SALE AND TO MAKE A TECHNICAL CORRECTION; PROVIDING THAT CERTAIN ADMINISTRATIVE RULES CONTAINED IN IDAPA 02.01.05 SHALL BE NULL, VOID, AND OF NO FORCE AND EFFECT; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-112, Idaho Code, be, and the same is hereby amended to read as follows:

22-112. PROMOTION AND CERTIFICATION OF IDAHO AGRICULTURAL PRODUCTS. (1) Except as provided in subsection (2) of this section, the department of agriculture may promulgate rules in compliance with chapter 52, title 67, Idaho Code, for the purpose of assisting others in the domestic and international promotion and certification of Idaho agricultural products. Programs authorized by this section are for the purpose of promoting Idaho agricultural products and/or to certify that Idaho agricultural products meet required standards in order to move in commerce. Programs authorized by this section are to be funded by the assessment of fees directly related to the provision of voluntary services and programs authorized and provided by rules adopted pursuant to this section. Fees assessed and collected pursuant to rules adopted according to this section shall be deposited in the agricultural department inspection fund and subject to the provisions of section 22-105, Idaho Code.

(2) Commissions, boards, associations, or other organizations authorized by statute to promote or regulate agricultural products grown, packed, or processed in the state of Idaho ~~under~~ pursuant to Idaho law shall be the primary and principal promotion and certification mark and trademark organizations for the particular commodity they are authorized to promote or regulate. Any trademarks, certification marks, brands, seals, logos or other identification marks, whether registered or not, that are established, owned or used by such commissions, boards, associations or organizations shall remain their sole property, and any use or infringement of their ownership right is prohibited unless written permission is obtained from an authorized representative of the commission, board, association or organization.

(3) A commission, board, association or other organization referenced in subsection (2) of this section may, upon a request to and acceptance by the Idaho department of agriculture, participate in the promotion and certification programs administered by the department, including the payment of fees as required by rules adopted pursuant to ~~subsection (1) of this section.~~

1 (4) Neither the Idaho department of agriculture, nor any agricultural
2 entity referenced in subsection (2) of this section, shall be responsible
3 for any negligent or other tortious act of the other while participating in a
4 joint promotional activity.

5 (5) (a) As used in this section, "certificate of free sale" means a cer-
6 tificate issued by the department of agriculture that certifies that a
7 product is grown or processed in Idaho, is distributed throughout the
8 state of Idaho, and is in accordance with Idaho health and sanitary laws
9 and regulations.

10 (b) To meet document requirements set by designation countries for
11 products grown or processed in Idaho, an exporter may apply for the
12 department to issue a certificate of free sale. The exporter appli-
13 cant shall be responsible for paying an application fee, which shall be
14 set by the department and shall not exceed one hundred dollars (\$100).
15 The department may request information from the exporter applicant,
16 including the applicant's most recent state, federal, or third-party
17 health inspection records. Such records shall be kept on file with
18 the department for one (1) year. Issuance and receipt of a certificate
19 of free sale does not relieve the exporter from regulation by the de-
20 partment of agriculture or from adhering to applicable state laws and
21 regulations.

22 SECTION 2. The rules contained in IDAPA 02.01.05, Department of Agri-
23 culture, relating to the Rules Governing Certificates of Free Sale, shall be
24 null, void, and of no force and effect on and after July 1, 2026.

25 SECTION 3. SEVERABILITY. The provisions of this act are hereby declared
26 to be severable and if any provision of this act or the application of such
27 provision to any person or circumstance is declared invalid for any reason,
28 such declaration shall not affect the validity of the remaining portions of
29 this act.

30 SECTION 4. An emergency existing therefor, which emergency is hereby
31 declared to exist, this act shall be in full force and effect on and after
32 July 1, 2026.